

25STCV30639 25STCV30639

County: los-angeles

Division: Civil Law and Motion

Department: 11

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Case Number: 25STCV30639 Hearing Date: July 13, 2026 Dept: 11

Cota (25STCV30639)

Tentative Ruling Re: Motion to Compel

Compliance with Court Order

Date: 7/13/26

Time: 11:00 am

Moving

Party: Maria Cota ("Plaintiff")

Opposing Party: Marias Holding Corp.
("Defendant")

Department: 11

Judge: Bruce G. Iwasaki

TENTATIVE RULING

Plaintiff's motion to compel compliance is denied.

BACKGROUND

This is a wage-and-hour case.

On February 9, 2026, Judge David S. Cunningham III, now retired, ordered the parties to utilize the Belaire-West procedure for class discovery. (See 2/9/26 Minute Order, p. 1.)[1]

Since then, the parties have been unable to finalize a Belaire-West notice. Plaintiff attributes the delay to defense counsel's failure to disclose Defendant's position regarding the notice. (See Barahmand Decl., ¶¶ 3-10.)

Plaintiff moves to compel compliance with the February 9th order. In fact, the motion seeks two monetary sanctions (\$1,500.00 to be paid to the Court and \$1,765.00 to cover Plaintiff's attorney fees and costs related to the motion). The motion is brought pursuant to Code of Civil Procedure sections 177.5, 128(a)(4), and 2023.030. (See Notice of Motion, p. 2.)

DISCUSSION

Applicable Law

Section 177.5

Per section 177.5,

[a] judicial officer shall have the power to impose reasonable money sanctions, not to exceed fifteen hundred dollars (\$1,500), notwithstanding any other provision of law, payable to the court, for any violation of a lawful court order by a person, done without good cause or substantial justification. This power shall not apply to advocacy of counsel before the court. For the purposes of this section, the term "person" includes a witness, a party, a party's attorney, or both.

(Code Civ. Proc. § 177.5; see also *Vidrio v. Hernandez* (2009) 172 Cal.App.4th 1443, 1455 [noting that section 177.5 "empowers a court to impose monetary sanctions for violation, without good cause, of a lawful court order"].)

Section 128(a)(4)

Section 128(a)(4) recognizes that courts have inherent power "[t]o compel

obedience to its judgments, orders, and process, and to the orders of a judge out of court, in an action or proceeding pending therein.” (Code Civ. Proc. § 128, subd. (a)(4).)

Section 2023.030

Section 2023.030, subdivision (a), allows a court to “impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Id. at § 2023.030, subd. (a).) “The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both.” (Ibid.) “If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Ibid.)

Arguments

Plaintiff

Plaintiff contends:

Defendants have failed to comply with this Court’s February 9, 2026 Order requiring the Parties to use the procedure described in *Belaire* to notify putative class members that their contact information may be disclosed in this action and to provide them with an opportunity to opt out. (Barahmand Decl., ¶ 3; Ex. 1).

California courts

possess inherent authority to enforce their lawful orders. “Every court shall have the power to do all the following: compel obedience to its judgments, order, and process, and to the orders of a judge out of court, in an action or proceeding pending thereto.” Cal. C.C.P. § 128(a)(4). Despite numerous attempts to informally resolve the matter, including through an IDC, Defendants have failed to comply. (Barahmand Decl., ¶¶ 3-10). Defendants’ refusal to comply with a court Order warrants immediate intervention by this Court.

Accordingly, Plaintiff respectfully requests that the Court enforce its February 9, 2026 Order to

require Defendants to use the procedure described in Beldare to notify putative class members that their contact information may be disclosed in this action and to provide them with an opportunity to opt out.

* * *

Code of Civil Procedure

section 177.5 states, "a judicial officer shall have the power to impose reasonable money sanctions, not to exceed \$1,500.00 notwithstanding any other provision of law payable to the county in which the judicial officer is located, for any violation of a lawful court order by a person, done without good cause or substantial justification." The requirement the violation be without good cause or substantial justification does not require a finding of bad faith, or even that the violation was willful—all that is required is a determination the violation was without a valid excuse. *Seykora v. Superior Court*, 232 Cal. App. 3d 1075, 1081. (emphasis added).

Defendants have

demonstrated a pattern of non-compliance, including failing to timely respond to Plaintiff's requests to utilize the Beldare procedure ordered by the Court. As such, Plaintiff requests that the Court exercise its power to ensure Defendants understand the gravity of these proceedings, and the Court's Order, by imposing an additional \$1,500.00 penalty for disobeying the Court.

Accordingly, the Court

should impose sanctions in the amount of \$1,500.00, payable to the county, due to Defendants' willful violation of this Court's February 9, 2026 Order without substantial justification.

* * *

Pursuant to Cal. Code

Civ. Proc. § 2023.030, the court may issue sanctions against a party engaging in misuse of the discovery process or disobeying a court order. Furthermore, pursuant to Cal. Code Civ. Proc. § 128(a)(4), a Court shall have the power to "to compel obedience to its judgments, orders, and process, and to the orders of a judge out of court, in an action or proceeding pending therein."

Plaintiff was forced to

incur additional attorneys' fees and costs to prepare the instant Motion solely

because Defendants ignored this Court's February 9, 2026 Order requiring the Parties to utilize the Belaire Notice procedure. (Barahmand Decl., ¶¶ 11-13). Defendants failed to comply with the Order or provide any justification for their noncompliance, thereby necessitating this Motion.

Plaintiff requests

monetary sanctions in the amount of \$1,765.00 against Defendants to reimburse Plaintiff for the costs and fees incurred in bringing forth these proceedings.

(Motion, pp. 4-5, emphasis in original.)[2]

Defendant

In opposition to the motion, Defendant argues as follows:

Plaintiff's Motion was

premature and, now, moot, and her requests for sanctions are procedurally defective. Plaintiff's Motion and requests for sanctions should be denied as follows.

First. Plaintiff's Motion "requests the Court order

immediate compliance with [its] February 9, 2026 Order," citing Code of Civil

Procedure section 128(a)(4). [Plaintiff's Motion, pp. 4, ln. 11-12.] Defendant has already agreed to

Plaintiff's proposed Belaire West Notice, and has agreed to jointly engage in

the Belaire West process. [Michalski

Decl., ¶14.] Defendant is not taking the

position that intended recipients should be limited by location, job title, or

whether they have signed arbitration agreements with class action waivers. [Michalski Decl., ¶ 14.] Plaintiff's Motion is therefore moot.

Second. Plaintiff's Motion is procedurally

defective. Relying on section 128(a)(4),

Plaintiff asks the Court to enforce compliance with its February 9, 2026. But, other than conclusory assertions,

Plaintiff's Motion does not identify how Defendant failed or refused to

comply with the February 9, 2026 Order.

Defendant continued to engage in ongoing meet and confer efforts even

following the May 14 IDC hearing, and was responsive to Plaintiff's

correspondence regarding the Belaire West Notice procedure throughout. [Michalski Decl., ¶ 9.] Plaintiff does not – and cannot – cite a

single instance where Defendant outright refused to engage in the Belaire West

notice procedure. To the contrary,

Defendant repeatedly exchanged iterative revisions, and provided feedback on, Plaintiff's draft Belaire West Notice, and reached mutual agreement with Plaintiff on a final draft Notice.

Despite this, the only reason Plaintiff has not taken her Motion off-calendar is because Defendant did not also agree to pay sanctions in the amount requested here.

Third. Plaintiff's Requests for sanctions must be denied. Plaintiff's requested sanctions here are procedurally defective and are not statutorily authorized by sections 177.5 or 2030.030.

Section

177.5 does Not Authorize Plaintiff's Requested Sanctions, because Defendant Has Not Violated a Court Order. Plaintiff

therefore Cannot Show a Violation, or one without good cause or substantial justification. As to the former, Code of Civil Procedure

section 177.5 requires an underlying violation of a Court Order as a prerequisite. Then, in order for

sanctions to be authorized under 177.5, the Court must make a determination

that the violation was "without good cause or substantial justification." (Code Civ. Proc., § 177.5, et seq.) In her Motion, Plaintiff argues that

"[d]espite numerous attempts to informally resolve the matter, including

through an IDC, Defendant[] have failed to comply." [Plaintiff's Motion, pp. 4; ln. 20-21.] Plaintiff apparently conflates Defendant's

actively engaging in good faith meet and confer efforts with a violation of Court Order. But she cannot articulate

how Defendant's purportedly violated the February 2026 Order.

And Plaintiff's request

is additionally defective because she has not articulated how any such

violation would be without good cause or substantial justification. But this is the factual finding required for an award of sanctions under 177.5. At

the IDC referenced in Plaintiff's request for sanctions, the Court refused her request to direct Defendant to resolve the Belaire West notice or any other discovery issue by a date certain. Nevertheless, Defendant thereafter agreed to the Belaire West procedure, and nothing further is needed to initiate the Belaire West notice procedure.

Because Plaintiff's Motion fails to identify a violation by Defendant of

any Court Order at all, her requests for sanctions under section 177.5 must be denied.

Section

2023.030 is a general discovery sanctions statute. Plaintiff has not cited any authority for its application to the BelaireWest Notice Process. Plaintiff's sanctions requested pursuant to section 2023.030 should also be denied for several reasons. First, this section authorizes sanctions where the party opposing discovery has engaged in discovery misuse and in the absence of substantial justification or other circumstances making the sanction unjust. Here, Plaintiff has not identified any discovery misuse by Defendant at all, and therefore fails to provide a basis upon which this Court may impose sanctions. Plaintiff's motion references significant meet and confer efforts by Defendant, which is hardly discovery misuse.

Second, Plaintiff's

Request for Sanctions under section 2023.030, as applied here, would seemingly require a finding that Defendant actually violated a Court order. This is likely why Plaintiff's request for sanctions under 2023.030 is paired with a request under section 128(a)(4), which authorizes a Court to enforce and compel compliance with its Orders. Accordingly, because Defendant has not violated a Court Order, Plaintiff's request for sanctions under 2023.030 fails because it lacks the underlying factual support needed to trigger the Court's section 128(a)(4) authority. Plaintiff's reliance on section 2023.030 – and, in turn, section 128(a)(4) – therefore fails for the same reason as her request for sanctions under section 177.5: she has not identified a violation by Defendant of a Court Order.

Third, Plaintiff has not

offered any authority showing that section 2023.030 supports a request for sanctions within the context of a Belaire West Notice procedure. And, even if she had, Plaintiff's request for sanctions under 2023.030 fails because Defendant has not engaged in discovery misuse, and Plaintiff has not provided any basis to reach a finding to the contrary.

(Opposition, pp. 3-5, emphasis in original.)

Reply

In reply, Plaintiff asserts:

Defendant's Opposition

repeatedly asserts that Plaintiff disregarded the Court's guidance following the May 14, 2026 IDC and instead rushed into motion practice on a Sunday. The record establishes the opposite. During the IDC, the Court expressly addressed the scope of the Belaire-West Notice, indicating that it should be sent to all putative Class Members and rejecting Defendant's position that the Notice should be limited to individuals who worked at the same restaurant as Plaintiff. Despite the Court's guidance, Defendant continued to maintain that the Belaire-West Notice should not be distributed to all putative Class Members, necessitating the filing of Plaintiff's Motion. See Supplemental Declaration of Navid Barahmand, ¶ 5; Ex. A ("Ryan, the Court was absolutely clear that you need to supplement your objection-only responses and that the Belaire should go out to all putative class members, whether you style his comments as a directive, instructions, guidance, or otherwise.").

* * *

In fact, it was not until Friday, June 26, the business day before its opposition was due, that Defendant—for the first time—agreed to issue the Belaire to all Class Members “not limited by location and not limited by whether an arbitration agreement is signed,” but only if Plaintiff withdrew this Motion. See Supplemental Declaration of Navid Barahmand, ¶ 7; Ex. B.

* * *

Defendant correctly notes that Code of Civil Procedure section 177.5 requires an underlying violation of a Court Order, but that is precisely what occurred here. On February 9, 2026, this Court Ordered the Parties to utilize the Belaire-West Notice procedure to provide notice to Class Members. Rather than complying, Defendants repeatedly delayed for many months, and further delayed following the Court's guidance in an IDC.

* * *

Defendant's position that Code of Civil Procedure Section 2023.020 is a “general discovery sanctions” statute misunderstands the very nature of the Belaire-West procedure. On February 9, 2026, this Court lifted the discovery stay, allowed

for the discovery of certification-based discovery, while also requiring that the Parties meet and confer regarding the Belaire-West Notice procedure.

Defendant's argument is also foreclosed by the California Supreme Court's decision in *City of Los Angeles v. PricewaterhouseCoopers, LLP*, in which the Supreme Court determined that Section 2023.030 serves as an independent source of sanctions power to deter discovery abuses, which is exactly what happened here. *City of Los Angeles v. PricewaterhouseCoopers, LLP*, 17 Cal. 5th 46, 75 (2024).

(Reply, pp. 2-5.)

Analysis

The motion is denied for two reasons:

* First, the dispute over the notice to potential class members is resolved. There is no ongoing dispute. Defendant has stipulated to use Plaintiff's Belaire-West notice without limitation. (See Opposition, p. 3; see also Michalski Decl., ¶ 14.)

* Second, Plaintiff fails to establish prior noncompliance. The February 9th order states in relevant part:

The matter is called for hearing.

The Court has read and considered the Joint Initial Status Conference Statement filed on 01/23/2026.

Court and counsel confer regarding the status of the case.

The Court is lifting the discovery stay. The Court is authorizing precertification discovery only.

The Court orders the parties to use the procedure described in the *Belaire West Landscape v. Superior Court* (2008) 149 Cal.App.4th 554 to notify putative class

members giving them the opportunity to opt out. The parties are to split the cost of the procedure equally. Counsel are to meet and confer regarding selection of a third-party administrator.

The Court will address any dispute on the scope of discovery through an Informal Discovery Conference on an issue by issue basis.

A mediation completion deadline is scheduled for 11/09/2026.

(2/9/26 Minute Order, p. 1, emphasis added.) As Defendant points out, the order “d[oes] not specify a date certain by which the Parties were required to initiate or complete the Belaire West process.”

(Opposition, p. 1.) Given the plain language of the order, especially the silence as to a completion date, Plaintiff’s timing/delay argument is unavailing.

And Plaintiff’s references to the May 14, 2026 IDC do not change the result. The February 9th order requires disputes about the scope of discovery to be discussed at IDCs. (See 2/9/26 Minute Order, p. 1.) Defendant’s earlier disagreements concerning the Belaire-West notice – contesting which employees the notice should be sent to – were scope-based disagreements. Nothing in the May 14th IDC order sets a deadline for agreeing to the scope, drafting a final Belaire-West notice, or finishing the Belaire-West process. The order simply ambiguously instructs “[c]ounsel to meet and confer.”

(5/14/26 Minute Order, p. 1.) The ambiguity renders the May 14th IDC order insufficient to create an obligation supporting an award of monetary sanctions for failure to comply.

The Court finds monetary sanctions under sections 177.5, 128(a)(4), and 2023.030 unavailable because Plaintiff fails to show a violation of either the February 9th order or the May 14th IDC order. Plaintiff’s motion to compel compliance and for monetary sanctions is denied.

[1] “The named plaintiff may seek precertification discovery to identify and obtain contact information (e.g., addresses, telephone numbers) for members of the putative class (e.g., other

customers with similar claims against defendant).” (Weil & Brown, Cal. Practice Guide: Civ. Procedure Before Trial (The Rutter Group 2026) ¶ 14:135.3, emphasis in original.) “Such information is generally discoverable, subject to privacy protections for the putative class members [citation].” (Ibid., emphasis in original.) Indeed, “[t]o protect the class members’ privacy, they must be given the right to object in advance to (‘opt out’ of) disclosure of their identities and contact information.” (Id. at ¶ 14:135.6.) “A written notice approved by the court is required for this purpose.” (Ibid.) The written notice is known as a Belaire-West notice. (See, e.g., id. at ¶ 14:135.10.)

[2] “IDC” means informal discovery conference.